Getting Dad's Legal Papers Ready for an Attorney's Review

Your family's part, in order: ten actions, with a line for who does each and by when.

The goal: you can hand an elder law attorney a dated list of the papers Dad has signed, where each one is kept, who each one names, what you couldn't find, and the questions you'd like answered.

Nothing is pressing, so take it a folder at a time, on whatever afternoons suit Dad. Share the list. Put a name next to each action and a date that suits your family, and tick it when it's done.

ACTION	WHO	BY WHEN	DONE
1. Talk with Dad about his wishes while he can take part fully, and ask which papers he has signed and where he keeps them. Write down what he says.			
2. Locate the current will, any trusts and the durable financial power of attorney. Note where each one is and the date on it.			
3. Locate his healthcare decision-making documents and any advance healthcare directive.			
4. Locate deeds and other property documents.			
5. Note how his major assets are titled and who is named on beneficiary forms, as far as the papers show. Mark anything unconfirmed.			
6. Copy down who the documents name to make financial decisions and who to make healthcare decisions. Copy the names; don't interpret the page.			
7. List the papers you couldn't find or aren't sure exist.			
8. List any trusts for an elder law attorney to review, and write down, as questions, anything about how property is owned or might one day be transferred. Change nothing.			
9. Prepare your list of legal questions, and next to each write who it goes to: Dad, your Medicaid planner or an elder law attorney.			
10. With Dad, agree which family members should know where the papers are kept, and tell them.			

You're done when

Dad's legal decision-making and estate-planning documents have been located or listed as not found, who each one names is copied down, and your questions and the items you'd like reviewed are written out for an elder law attorney. What comes after that, the attorney's review, any legal advice and any change to a document or to how something is owned, isn't on this list, because it isn't the family's to do alone.

If it takes longer than you thought

- Don't fill a gap by guessing. “Haven't found it yet” is a finished line.
- If Dad would rather not go through a folder today, leave it for another afternoon. The order matters more than the pace.
- If someone suggests changing a document or how something is owned along the way, write it down as a question for the attorney and carry on with the list.

What this plan doesn't do

It organizes your family's part. It doesn't establish that any document is valid, sufficient or current, and it doesn't stand in for the attorney's review it prepares you for. Rules vary by state, and nothing here is legal, financial or tax advice.

Ready for the next step?

You've worked through your family's part, a folder at a time. The planning interview asks about your family's situation beyond the legal papers and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for care.

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